

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X		
Saeed Cox, Damian Reyes and Amadou Diallo,	:	
	:	Index Number:
	:	Date Purchased:
	:	Date Filed:
Plaintiffs	:	SUMMONS
-against-	:	
City of New York, New York City Police Department,	:	
Police Officer Christian Sanchez, Shield 25663 of the 44	:	
Precinct and New York City Police Officers John Doe,	:	
	:	Plaintiff Cox's
	:	residence is:
	:	1051 College Avenue
	:	Bronx, NY 10456
Defendants	:	
-----X		

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: July 12, 2017
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Christian Sanchez, Shield 25663 of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Saeed Cox, Damian Reyes and Amadou Diallo,

Plaintiffs

-against-

City of New York, New York City Police Department,
Police Officer Christian Sanchez, Shield 25663 of the 44
Precinct and New York City Police Officers John Doe,

Defendants

-----X
Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Saeed Cox, (hereinafter referred to as "COX") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Damian Reyes, (hereinafter referred to as "REYES") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Amadou Diallo (hereinafter referred to as "DIALLO ") is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, the Police Officer Christian Sanchez, Shield 25663 of the 44 Precinct, (hereinafter referred to as "SANCHEZ") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
8. On or about May 3, 2016 notice required by Municipal Law 50-E was given to City of New York, by personal service as to COX and REYES. Said notice set forth the facts underlying Plaintiff’s claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.
9. On or about May 17, 2016 notice required by Municipal Law 50-E was given to City of New York, by personal service as to DIALLO. Said notice set forth the facts underlying Plaintiff’s claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.
10. On or about July 26, 2016, a hearing required by Municipal Law 50-H was conducted. At said hearing, COX testified and set forth the facts underlying Plaintiffs’ claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

11. On or about September 30, 2016, a hearing required by Municipal Law 50-H was conducted. At said hearing, REYES testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

12. That on multiple dates Plaintiff DIALLO requested that his action be stayed because he was unable to attend a hearing required by Municipal Law 50-H because he was incarcerated in Upstate New York. That despite making such requests, no answer was ever given by Defendants.

13. That on or about August 24, 2012 at approximately 8:00 P.M. in the vicinity of 1055 Findlay Avenue, Bronx, NY Plaintiffs were standing outside of the above location, where one of their other friends who was shot, was also standing, when SANCHEZ and DOES stopped, handcuffed and arrested Plaintiffs.

14. That at no time did Plaintiffs possess anything of an illegal or unlawful nature.

15. That at no time did Plaintiffs engage in any criminal or unlawful behavior.

16. That at no time did Plaintiffs prevent SANCHEZ or any other police officer from speaking with or helping the gunshot victim.

17. That after Plaintiffs were arrested they were transported to the 44 police precinct.

18. That while Plaintiffs were inside of the 46 precinct, Plaintiffs were held in a holding cell occupied with other people for several hours

19. That while Plaintiffs were inside of the 46 precinct, they were each subjected to a strip search and that nothing of an illegal nature was found on any of them.

20. That after several hours Plaintiffs were brought to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.

21. That while Plaintiffs were in Central Booking they were each subjected to harassment from other prisoners.

22. That on or about August 25, 2012 COX was arraigned in Bronx County Criminal Court on docket 2012BX049239 and charged with Obstructing Governmental Administration in the Second Degree and related offenses.

23. That at the time of his arraignment, COX was released on his own recognizance and ordered to return to court on another day.

24. That on or about August 26, 2012 REYES arraigned in Bronx County Criminal Court on docket 2012BX049221 and charged with Obstructing Governmental Administration in the Second Degree and related offenses.

25. That at the time of REYES' arraignment, bail was set and REYES was remanded to the custody of the New York City Correctional Department until he was released on September 5, 2012 after bail had been paid.

26. That on or about August 25, 2012, DIALLO was arraigned in Bronx County Criminal Court on docket 2012BX049237 and charged with Obstructing Governmental Administration in the Second Degree and related offenses.

27. That at the time of DIALLO's arraignment, bail was set and DIALLO was remanded to the custody of the New York City Correctional Department until he was released.

28. That on and between August 25, 2012 through April 18, 2016, COX made several Court appearances until the matter was dismissed upon application of the Bronx County District Attorney.

29. That on and between August 26, 2012 through April 18, 2016, REYES made several Court appearances until the matter was dismissed upon application of the Bronx County District Attorney.

30. That on and between August 25, 2012 through April 18, 2016, DIALLO made several Court appearances until the matter was dismissed upon application of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiff COX repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. That Defendants acted with actual malice toward Plaintiff COX and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

33. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

34. That as a result of the actions by Defendants, Plaintiff COX was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

35. That as a result of the Defendants' actions, Plaintiff COX has been unable to sleep.

36. That as a result of the Defendants' actions, Plaintiff COX missed several days from work.

37. That as a result of the Defendants' actions, Plaintiff COX missed several days from school.

38. That as a result of the Defendants' actions Plaintiff COX sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff COX as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

41. Defendants having no lawful authority to arrest Plaintiff COX, did, nevertheless, unlawfully arrest Plaintiff COX with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff COX is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

42. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. Defendants conspired to violate Plaintiff COX's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff COX is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. Plaintiff COX was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff COX to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff COX by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff COX. Plaintiff COX is thus entitled to compensatory and exemplary damages.

46. That during the pendency of the case, Defendants maliciously prosecuted COX by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. COX is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

47. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. At all times pertinent hereto, SANCHEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

49. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SANCHEZ and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

50. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 49, as if more fully stated herein at length.

51. The City of New York and New York City Police Department's failure to provide adequate training and supervision to SANCHEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff COX. Plaintiff COX is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

52. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff COX.

54. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff COX.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

55. Plaintiff REYES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54 as if more fully stated herein at length.

56. That Defendants acted with actual malice toward Plaintiff REYES and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff REYES.

57. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

58. That as a result of the actions by Defendants, Plaintiff REYES was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

59. That as a result of the Defendants' actions, Plaintiff REYES has been unable to sleep.

60. That as a result of the Defendants' actions, Plaintiff REYES missed several days from work.

61. That as a result of the Defendants' actions, Plaintiff REYES missed several days from school.

62. That as a result of the Defendants' actions Plaintiff REYES sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff REYES as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

65. Defendants having no lawful authority to arrest Plaintiff REYES, did, nevertheless, unlawfully arrest Plaintiff REYES with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff REYES is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

66. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. Defendants conspired to violate Plaintiff REYES's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff REYES is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

68. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 67, as if more fully stated herein at length.

69. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff REYES to suffer physical and severe emotional distress for which the Defendants are

individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff REYES by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff REYES. Plaintiff REYES is thus entitled to compensatory and exemplary damages.

70. That during the pendency of the case, Defendants maliciously prosecuted REYES by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. REYES is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

71. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 70, as if more fully stated herein at length.

72. At all times pertinent hereto, SANCHEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

73. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SANCHEZ and DOES committed within the scope of their employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

74. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 73, as if more fully stated herein at length.

75. The City of New York and New York City Police Department's failure to provide adequate training and supervision to SANCHEZ and DOES constitutes a willful and wanton

indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff REYES. Plaintiff REYES is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

76. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 75, as if more fully stated herein at length.

77. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff REYES.

78. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff REYES.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS

79. Plaintiff DIALLO repeats, reiterates and realleges the allegations contained in paragraphs 1 through 78 as if more fully stated herein at length.

80. That Defendants acted with actual malice toward Plaintiff DIALLO and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff DIALLO.

81. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

82. That as a result of the actions by Defendants, Plaintiff DIALLO was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

83. That as a result of the Defendants' actions, Plaintiff DIALLO has been unable to sleep.

84. That as a result of the Defendants' actions, Plaintiff DIALLO missed several days from work.

85. That as a result of the Defendants' actions, Plaintiff DIALLO missed several days from school.

86. That as a result of the Defendants' actions Plaintiff DIALLO sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

87. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 86, as if more fully stated herein at length.

88. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff DIALLO as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

89. Defendants having no lawful authority to arrest Plaintiff DIALLO, did, nevertheless, unlawfully arrest Plaintiff DIALLO with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

90. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 89, as if more fully stated herein at length.

91. Defendants conspired to violate Plaintiff DIALLO's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

92. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 91, as if more fully stated herein at length.

93. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff DIALLO to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff DIALLO by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff DIALLO. Plaintiff DIALLO is thus entitled to compensatory and exemplary damages.

94. That during the pendency of the case, Defendants maliciously prosecuted DIALLO by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. DIALLO is thus entitled to compensatory and exemplary damages.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

95. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 94, as if more fully stated herein at length.

96. At all times pertinent hereto, SANCHEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

97. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that SANCHEZ and DOES committed within the scope of their employment.

**AS AND FOR A TWENTIETH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

98. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 97, as if more fully stated herein at length.

99. The City of New York and New York City Police Department's failure to provide adequate training and supervision to SANCHEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DIALLO. Plaintiff DIALLO is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

100. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 99, as if more fully stated herein at length.

101. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DIALLO.

102. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DIALLO.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

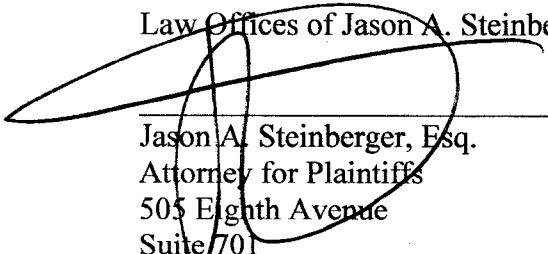
On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

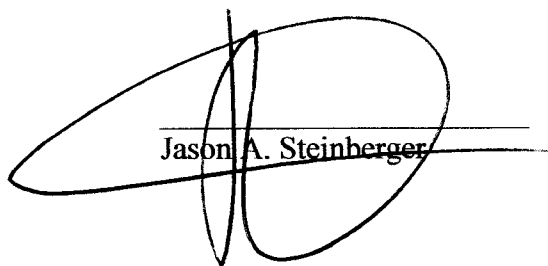


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: July 12, 2017



Jason A. Steinberger

Index Number:**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

SAEED COX, DAMIAN REYES and AMADOU DIALLO,

Plaintiffs

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER CHRISTIAN SANCHEZ, SHEILD 25663 OF THE 44 PRECINCT AND NEW
YORK CITY POLICE OFFICERS JOHN DOE,**

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for**PLEASE TAKE NOTICE**☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on**NOTICE
OF ENTRY**☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
once of the Judges of the within named Court,**NOTICE OF
SETTLEMENT**at
on

200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018To:
Attorney(s) for